

JUDGMENT SHEET
PESHAWAR HIGH COURT, PESHAWAR
JUDICIAL DEPARTMENT

C.R No.1431-P/2025.

Muhammad Tufail Vs. Muhammad Jehangir etc.

Date of hearing **03.06.2026.**

Mr. Muhammad Adnan, Advocate, for the petitioner.

Respondent in person.

JUDGMENT

MUHAMMAD NAEEM ANWAR, J: - Muhammad Jahangir (respondent No.1) instituted a suit for declaration, asserting that the minor, Mst. Hooria, is his biological daughter. According to the plaint, defendant No.1, Muhammad Tufail (the petitioner herein), is his real brother who had remained issueless. It was alleged that, with the consent of the plaintiff and his wife, the petitioner was entrusted with the upbringing of the minor as an adopted child. However, taking undue advantage of such arrangement, the petitioner allegedly portrayed himself as the biological father of the minor and succeeded in recording his name as her father in the official records maintained by NADRA, educational institutions, and other public authorities. It was, therefore, prayed that the said entries be declared illegal, ineffective, and without lawful authority. The suit was contested by the petitioner, who categorically denied the plea of adoption and asserted that Mst. Hooria is his biological daughter. He maintained that all official documents, including the Child Registration Certificate (CRC/Form-B), Family Registration Certificate (FRC), educational record, and other public documents, correctly reflected him as the father of the minor. It was further pleaded that the suit had been instituted mala fide, solely to harass him, and was liable to dismissal.

The remaining official defendants also resisted the claim by asserting that the Child Registration Certificate and allied public records had been prepared on the basis of the information furnished by Muhammad Tufail in the year 2016, long before the institution of the suit, and therefore the entries contained therein

carried a presumption of correctness unless rebutted through cogent and convincing evidence.

To substantiate his claim, the plaintiff examined Muhammad Sarwar, the real brother of both contesting parties, as PW-1, and Attiq-ur-Rehman as PW-2, besides appearing in the witness box himself as PW-3. Mst. Noreen also deposed in support of the plaintiff and stated that Mst. Hooria and one Robina were twin daughters and that, since Muhammad Tufail was childless, one of the twins, namely Mst. Hooria, was handed over to him for upbringing. In rebuttal, the petitioner produced Zulfiqar Khan as DW-1, examined himself in defence, while the minor Mst. Hooria also entered the witness box as DW-2. Zeeshan Akbar, Secretary, Union Council, was likewise examined in support of the defence. Upon appreciation of the oral and documentary evidence, the learned trial Court dismissed the suit. However, the learned Additional District Judge-I, Lahor, District Swabi, vide judgment and decree dated 23.01.2025, allowed the appeal and reversed the findings recorded by the trial Court. Hence, the present petition.

2. I have heard the learned counsel for the parties at considerable length and perused the record.

3. The documentary evidence produced on record overwhelmingly supports the case of the petitioner. The Child Registration Certificate (Ex. DW-1/1), Family Registration Certificate (Ex. DW-1/2), Birth Registration Certificate (Ex. DW-1/3), educational record, and even the passport issued in favour of the minor on 05.12.2024 consistently describe Muhammad Tufail as her father and Nayab Tufail as her mother. Significantly, the Child Registration Certificate was issued on 19.08.2016, several years prior to the institution of the suit on 01.04.2022, and records the date of birth of the minor as 25.01.2014. Consequently, the official record demonstrates that the petitioner has continuously been recognized as the father of the minor since her early childhood, without any objection from the respondent for almost thirteen years. It is also an admitted position that from the date of her birth until today, the minor has continuously remained in the care, custody, and upbringing of the petitioner and his wife. She

has been residing with them at Tarbela, pursuing her education there, and has throughout regarded them as her parents. This fact was candidly admitted even by PW, Mst. Noreen, during her cross-examination. The plaintiff sought to rely upon the testimony of Muhammad Sarwar, who stated that Mst. Hooria and Robina were twins. However, no documentary evidence whatsoever was produced to substantiate such assertion. During the course of arguments, learned counsel for the respondent fairly conceded that Robina was born in a hospital, yet no hospital record, birth register, delivery record, medical certificate, or any contemporaneous document was produced to establish either the alleged twin birth or the biological parentage of the minor. Such omission assumes considerable significance because documentary evidence of birth was admittedly available but deliberately withheld.

4. Equally devoid of legal efficacy is the reliance placed upon a Fatwa produced by the respondent during the proceedings. The determination of biological parentage is essentially a question of fact requiring adjudication on legally admissible evidence. Such an issue cannot be decided on the basis of a religious opinion or Fatwa, however respectable its source may be, as it neither constitutes substantive evidence nor displaces duly maintained public records.

5. Although modern scientific techniques, including DNA profiling, may in an appropriate case provide relevant evidence regarding biological parentage, such evidence is not conclusive in every circumstance. In the present case, the contesting parties are real brothers and, therefore, share a substantial degree of genetic similarity. Consequently, even a DNA examination could not, by itself, conclusively resolve the controversy unless supported by other independent and convincing evidence. Be that as it may, no application seeking DNA analysis was ever filed before the learned trial Court, nor does any such evidence form part of the record. The appellate Court, therefore, had no lawful basis to draw any inference on that account.

6. Another significant aspect of the matter relates to the age, welfare, and psychological well-being of the minor herself. At present, Mst. Hooria is approximately thirteen years of age. She has spent her entire conscious life in the custody, care, affection, and guardianship of the petitioner and his wife. She has been educated under their care, her official identity has consistently reflected them as her parents, and she herself appeared before the Court affirming that relationship. Any judicial determination unsettling that settled parentage at this advanced stage of her childhood would inevitably expose the minor to severe emotional distress, psychological trauma, social embarrassment, and identity crisis. The Court, while adjudicating disputes affecting minors, cannot remain oblivious to the paramount consideration of their welfare, emotional stability, and best interests.

7. The significant aspect the reply of Muhammad Jahangir when questioned regarding the extraordinary delay in instituting the suit, he admitted that relations between the two brothers had initially remained cordial but had subsequently become strained. This admission is of considerable significance. It unmistakably indicates that the dispute regarding the parentage of the minor surfaced only after the deterioration of relations between the brothers. Such strained personal relations can never furnish a legitimate foundation for unsettling the identity and status of a child who has, for over a decade, lived under a settled family environment.

8. The respondent's decision to question the parentage of the minor after an unconscionable delay of nearly thirteen years is wholly inconsistent with ordinary human conduct. Had he genuinely believed himself to be the biological father, nothing prevented him from asserting such a claim immediately after the birth of the child or at least when the Child Registration Certificate, Family Registration Certificate, school records, and other official documents were prepared in the petitioner's name years earlier. His prolonged silence, coupled with the institution of the present proceedings only after the relationship between the brothers became hostile, substantially undermines the credibility of his

claim and strongly suggests that the litigation is a manifestation of personal animosity rather than a bona fide effort to vindicate a legal right.

9. In addition, under Article 46(5) of the Qanun-e-Shahadat Order, 1984, statements relating to the existence of a relationship by blood, marriage, or adoption are relevant provided they are made by a person having special means of knowledge before any dispute concerning such relationship has arisen. Likewise, Article 64, Illustration (b), recognizes that where a person has consistently been treated by members of the family as the legitimate child of another, such conduct constitutes a relevant circumstance for determining questions of parentage. These provisions underscore the legislative policy that, in disputes concerning status and parentage, contemporaneous declarations, family conduct, and long-standing recognition assume considerable evidentiary significance. The documentary evidence assumes even greater importance where it emanates from official records maintained by public authorities in the ordinary course of their statutory functions. The evidentiary value of a birth certificate has long been recognized by judicial precedent for which reference may be made to the cases of Mst. Zainab Jehan v. Additional District Judge (2012 YLR 1480), Roshan Din v. Mst. Ghulam Fatima (2002 YLR 2706). In the present case, the petitioner's strongest documentary evidence consists of the production of the original Birth certificate, form B of NADRA, School record brought of record which carry a statutory presumption of correctness and cannot be lightly discarded except on the basis of cogent, convincing, and unimpeachable evidence establishing fraud, fabrication, or material inaccuracy. The same principle governs entries made in identity documents maintained by statutory authorities. In Razia Khatoon v. Additional District Judge (1991 SCMR 840), the Hon'ble Supreme Court held that, in the absence of convincing rebuttal, the entries contained in the National Identity Card are to prevail and observed that: "In such background the entries of the National Identity Card shall hold the field unless they are rebutted by an equally good or better

evidence." Which principle was reaffirmed in *Abdul Ghani Khan v. Muhammad Ibrahim* (2011 SCMR 837), wherein the august Supreme Court further emphasized that documentary evidence cannot be displaced by bare oral assertions, observing that where official documentary evidence remains unrebutted, mere verbal claims are legally insufficient to negate its probative value. Reliance was placed upon *Akhtar Hussain Zaidi v. Muhammad Yaqinuddin* (1988 SCMR 753), wherein it was authoritatively held that oral assertions, unsupported by equally reliable documentary evidence, cannot prevail over authentic public records. The cumulative effect of the above statutory provisions and judicial pronouncements is that, in disputes relating to parentage, official records such as birth registers, birth certificates, Child Registration Certificates, National Identity Cards, and other contemporaneously prepared public documents constitute the most reliable category of evidence. Once such documentary evidence consistently records the parentage of a child, the burden shifts heavily upon the party challenging those entries to rebut them by evidence of equal or superior probative value. Mere oral assertions, belated claims, or family disputes surfacing long after the creation of official records do not possess sufficient evidentiary weight to displace the statutory presumption of correctness attached to public documents maintained in the ordinary course of official business. Although the plaintiff/respondent has challenged the authenticity and correctness of the entire documentary record, he has failed to produce any cogent, convincing, credible, or unimpeachable evidence capable of rebutting the presumption attached to those public documents. In the absence of evidence of equal or superior probative value, the official records continue to hold the field, and the respondent's bare oral assertions are wholly insufficient in law to invalidate or override the consistent documentary evidence on record.

10. Courts of law are guardians not only of legal rights but also of the dignity, security, and welfare of minors. Children must never be converted into instruments for settling personal vendettas or family rivalries. To permit the respondent, after

allowing the child to remain with the petitioner throughout her formative years, to reopen the issue of her parentage merely because of subsequent hostility between two brothers would be to sacrifice the welfare of the child at the altar of personal acrimony. Such an approach would expose the minor to lasting psychological scars, undermine her emotional security, disrupt her social identity, and irreparably impair her future development. Equity, good conscience, and the doctrine of acquiescence equally militate against entertaining such a destabilizing claim after the lapse of more than a decade.

11. The learned appellate Court, while reversing the well-reasoned findings of the trial Court, primarily relied upon the oral testimony of the plaintiff and his witnesses. However, such oral assertions fall far short of the standard required to dislodge consistent public documents carrying a statutory presumption of correctness. No convincing evidence regarding pregnancy, delivery, contemporaneous medical treatment, birth registration, or any other independent circumstance establishing biological parentage was produced. Mere oral assertions, unsupported by reliable documentary evidence, cannot prevail over official records consistently maintained since the infancy of the child. Likewise, undue emphasis was placed by the appellate Court on the non-appearance of the petitioner's wife. Such reasoning is legally unsustainable. The burden of proving the alleged biological parentage squarely rested upon the plaintiff, who approached the Court seeking a declaration contrary to long-standing official records. Weakness, if any, in the defence cannot relieve the plaintiff of his primary obligation to establish his own case through cogent, convincing, and unimpeachable evidence. That burden has remained wholly undischarged.

12. Viewed from every conceivable angle, the entire documentary record, the admitted long custody of the minor, the unexplained delay of nearly thirteen years, the absence of reliable evidence regarding birth, the respondent's own admission regarding strained relations between the brothers, and above all, the paramount welfare and emotional security of the minor,

overwhelmingly support the findings recorded by the learned trial Court. The learned appellate Court, therefore, fell into patent error in reversing those findings on the basis of insufficient and unreliable evidence, resulting in a miscarriage of justice.

13. For the foregoing reasons, the instant petition merits acceptance and is accordingly allowed. The judgment and decree dated 23.01.2025 passed by the learned Additional District Judge-I, Lahor, District Swabi, are hereby set aside, while the judgment and decree of the learned trial Court dismissing the suit are restored. No order as to costs.

Announced.
03.06.2026.

J U D G E

Abdul Wahid, JSS

(SB)

Hon'ble Mr. Justice Muhammad Naeem Anwar.